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Provision of March 13, 2025
Register of provisions
n. 154 of March 13, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data (Legislative Decree of June 30, 2003, n. 196), as amended by Legislative Decree of August 10, 2018, n. 101, containing provisions for the adaptation of the national legal system to the aforementioned Regulation (hereinafter "Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation n. 1/2000, adopted by resolution of June 28, 2000;

REPORTING Attorney Guido Scorza;

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

1.1. Premise

With communication prot. n. 118666 of October 11, 2024 (notified on the same date via certified electronic mail), which is to be understood as fully referenced herein, the Office initiated, pursuant to Article 166, paragraph 5, of the Code, a procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation against the individual enterprise G@S Telecommunications of Losito Lucia (hereinafter also "G@S"), represented by the pro tempore legal representative, with registered office in Scafati (SA), via Nazionale n. 448, VAT number 09612721218.

The procedure originates from an investigation initiated by the Authority, following the receipt, on March 14, 2024, of a report in which Mr. XX complained about the unauthorized activation of a fixed telephony offer by the telephone company Vodafone Italia S.p.A.

Specifically, the reporter stated that he had attempted, three days prior, to activate an online offer from Vodafone for the provision of a fixed telephone line, however interrupting the procedure after entering his data, and thus not finalizing the offer. The following day, the reporter was contacted by phone by a person who identified herself as a Vodafone operator, who requested the transmission via WhatsApp of an identity document in order to complete the activation of the offer.

After transmitting the document, the reporter contacted Vodafone Italia S.p.A.'s customer service, from which he learned that the procedure previously initiated online was interrupted and no longer operational, while a contract in his name had been completed at a Vodafone store. Subsequently, Vodafone Italia S.p.A., based on what the reporter stated, informed him of the blocking of two additional contracts activated without his knowledge. Based on this information, Mr. XX sent the aforementioned report to the Guarantor and filed a complaint for identity theft with the Postal Police of Pesaro-Fano.

1.2. The request for information made by the Authority

The Office, having examined the circumstances reported in the notification and the documentation attached thereto, proceeded to request Vodafone Italia S.p.A., with a note dated April 29, 2024, to provide its observations regarding what was stated by the reporter, to provide the name of the dealer

who carried out the activations, and to clarify whether it intended to comply with the requests of the interested party regarding the immediate deactivation of the existing contracts.

In a note dated May 20, 2024, Vodafone responded stating, "Mr. XX is a Vodafone customer with the tax code [...] and customer code [...] associated with the Unlimited Internet Offer activated on 12.03.2024 and deactivated on 19.03.2024. On 11.03.2024, the customer initiated a web request for the activation of a Vodafone fixed-line offer. However, the online procedure did not complete, probably due to a technical problem, so the order, partially filled out, remained in a suspended state as an 'abandoned cart'. Mr. XX reports being contacted the following day on his mobile number [...] by a Vodafone operator, who offered to complete the order started online and for this purpose requested the sending of documents to complete the activation, which Mr. XX sent.

From the checks carried out, it emerges that this sale was executed by a multi-brand sales point under the name G@S TELECOMUNICAZIONI of LOSITO LUCIA, which is not authorized to carry out distance sales. Mr. XX subsequently contacted Vodafone Customer Service at the toll-free number 800100195 to obtain information regarding his order and was informed that the online procedure of 11.03.2024 was unsuccessful and that an activation had been recorded at a Vodafone store [...]. It should be noted that this was not, as hypothesized by Mr. XX, identity theft, but rather improper activity by the sales point, for which Vodafone will act, at the conclusion of the further ongoing analyses, with every contractually provided action that, in the majority of cases related to multi-brand stores (not Vodafone Stores), translates into the closure of the "report".

Vodafone provided further details of the notes present in the company systems regarding the position of the whistleblower, which refer to: "order initiated via web channel by Mr. XX; - contacts made in the following days by Mr. XX to number 180; - visit of Mr. XX, on 16.03.2024, at the Vodafone store [located in Fano], to request information regarding the practice of 12.03.2024".

The Office proceeded to send a second request, pursuant to Article 157 of the Code, to the individual enterprise indicated by Vodafone as the author of the unauthorized activation, which responded within the terms stating that "the customer came to our location to request a Vodafone fixed line, I try to make an effort but I do not remember very well if the customer had already made a request, I proceed with the coverage checks of the line and carry out all the procedures and verification of the documentation and acquisition, we proceed with all the information via email from the customer who confirms and signs the request".

G@S Telecommunications also provided the contractual documentation that binds it to Vodafone, documentation from which it does not appear that it was authorized to carry out telemarketing and teleselling activities, or the sale of products or services to subjects other than the customers of its own point of sale. From independent investigations, it also emerged that G@S is not registered in the Register of Communication Operators for telemarketing and teleselling activities (ROC).

1.3. Contestation of Violations

The Office, following the investigation, adopted the aforementioned act of contestation no. 118666 of October 11, 2024, in which it hypothesized that the individual enterprise G@S Telecommunications of Losito Lucia had carried out personal data processing of the whistleblower outside the framework of legitimacy provided by the Regulation and the Code. It also observed how G@S had made the independent decision to contact Mr. XX in order to proceed with the completion of the activation of the online offer initiated by him the previous day using its own means and without the intermediation of the company, and to do so it had reached him on his mobile phone using personal data that the whistleblower had not directly provided to the individual enterprise.

Furthermore, G@S had acquired the identity document of the whistleblower in a manner that did not ensure the correct identification of the customer and with that document had proceeded to register a new activation of telephone services in the Vodafone systems, which was different from that initiated by Mr. XX, evidently in order to attribute the acquisition of the new customer to its own activity. By doing so, G@S had deviated from the contractual provisions relating to the methods of acquiring new customers, which do not foresee the carrying out of telephone contacts (the company is not even registered in the Register of Communication Operators), and from those, including legislative ones,

relating to the identification of subjects requesting the activation of a telephone line. Having undertaken such independent initiatives, G@S had therefore stepped outside the framework of activities identified in the designation act as the data processor, pursuant to Article 28 of the Regulation, adopted by Vodafone and had, in the case in question, assumed the legal status of an independent data controller. The telephone contact made by the individual enterprise on April 12, 2024, with Mr. XX was therefore carried out in the absence of free, specific, and unequivocal consent obtained directly from the data subject or any other suitable legal basis and without having previously provided the same data subject with the necessary information on the processing of personal data. As a consequence of such unauthorized activity, the whistleblower had sent, via the WhatsApp messaging service, a copy of his identity document, believing in good faith that he was dealing with a subject who would complete the subscription to the previously initiated offer, whereas with the acquired data, the company G@S had realized a new and different activation of telephone services.

The Office therefore believed that G@S had processed Mr. XX's data in violation of the provisions of the Regulation regarding information (Articles 13 and 14), suitability of the legal basis and consent (Articles 6 and 7), the provisions of the Code regarding promotional telephone contacts (Article 130), as well as in violation of the principles of lawfulness, transparency, and fairness referred to in Article 5, paragraph 1, letter a) of the same Regulation.

On the basis of the above observations, the Office contested to G@S the following alleged violations:

a) Articles 5, paragraph 1, letter a), 6 and 7 of the Regulation and Article 130 of the Code, for having carried out the above-described processing of personal data of the whistleblower in violation of the principles of lawfulness and fairness, failing to obtain the necessary consent from the data subject and in the absence of any other suitable legal basis;

b) Article 5, paragraph 1, letter a), 13 and 14 of the Regulation, for having carried out the above processing in violation of the principles of transparency and fairness and without having provided the data subject with suitable information at least at the time of the first telephone contact.

2. EXERCISE OF THE RIGHT OF DEFENSE BY THE DATA CONTROLLER

The party, exercising its right of defense within the terms established by law, sent on November 11, 2024, an email the content of which is reproduced verbatim: "I identify myself as"

****Data Processing Responsibility****

Qualified as the data processing manager of the company G@S Telecomunicazioni, represented by Lucia Losito. Regarding your request, the customer visited our location to request a Vodafone fixed-line service. I try to make an effort, but I do not remember very well if the customer had already made a request. I proceed with the coverage checks of the line and carry out the entire procedure and verification of the documentation and acquisition. We proceed with all the information via email from the customer who confirms and signs the request, and we add that we do not make any online sales; we have never called any customer to request SIM cards or fixed lines. We sell and activate in person, and to proceed with the requests, we need the customer's confirmation, where they must confirm the practice via a link sent to them via email or through the customer's mobile number at the same time as the request; otherwise, we cannot conclude the request/contract proposal. We have acted in good faith and with the utmost respect for our duties, and we have even closed the code with Vodafone for the identity theft request.

****3. AUTHORITY ASSESSMENTS****

In acknowledging the defensive arguments, it must be noted that they add nothing to what was represented by G@S during the investigation phase and therefore do not appear suitable to exclude the responsibility of the same regarding the alleged violations.

Firstly, it must be observed that on the historical fact, as represented by the notifier, there seems to be no doubt since the statements provided to the Authority are supported by external evidence constituted by the reconstruction of events carried out by Vodafone, which confirmed that Mr. XX initiated and then interrupted an online procedure for the activation of a fixed-line offer and that this procedure was subsequently canceled by G@S and replaced by an activation carried out at its physical store.

On this point, the statements of the individual enterprise do not appear credible or documented, given

that the store managed by G@S is located in the province of Naples, and the activation of Mr. XX's fixed line would have had to take place at his residence in the province of Pesaro, in Fano, as highlighted by the copy of the contract in the records.

In this regard, it should be noted that Mr. XX, in his report to the Authority, stated that he had never requested the activation of the existing contract "either by phone, online, or in person at the store."

To make G@S's version even less credible, there is also the circumstance, represented by Vodafone following a consultation of its systems, that Mr. XX, once he became aware of the irregularity of the procedure, went to a Vodafone store located in Fano to confirm what had happened.

It can therefore be asserted that Mr. XX did not go to the G@S store for the activation of the fixed-line offer and that it was carried out remotely by the individual enterprise, which, as highlighted by Vodafone, is not authorized to carry out such operations.

It must therefore be confirmed what was reconstructed in the context of the contestation, namely that G@S acquired from Vodafone's systems the information about the unsuccessful online procedure for the activation of Mr. XX's fixed line, reached him on his mobile phone (using personal data that the notifier had not directly provided to the individual enterprise), induced him to provide his identity document in ways that do not ensure the correct identification of the customer, and with that document proceeded to register a new activation of telephone services in Vodafone's systems, different from that initiated by Mr. XX, evidently in order to attribute the acquisition of the new customer to its own activity.

To achieve the above, G@S deviated from the contractual provisions regarding the methods of acquiring new customers (art. 10.5 of the Partner VND Contract – a company controlled by Vodafone for the marketing of its telecommunications products and services – “The Partner VND also undertakes to comply, as far as it is concerned, with art. 55 of the Code of Communications (Legislative Decree No. 259/03 and subsequent amendments), as amended by Law No. 155 of 2005 (the so-called “Pisanu Decree”) and subsequent amendments. In particular, the Partner VND has the specific obligation to identify the Customer – or the person acting on their behalf (verifying in this latter case the existence of the relevant powers of representation) – by requesting the exhibition and acquisition of a readable photocopy, in all its parts, of a valid identity document and the assignment of the tax code”), and from those, including legislative ones, relating to the identification of individuals requesting the activation of a telephone line.

Regarding the identification of G@S's role, given that it had been designated as responsible by the VND Company, controlled by Vodafone, it is necessary to reiterate what has already been expressed in other provisions (for all, provision No. 405 of September 14, 2023, at www.gpdp.it, web doc No. 9936215; provision No. 159 of February 22, 2024, web doc No. 10007895; provision No. 735 of November 27, 2024, web doc No. 10103653) and recall what was established by the First Civil Section of the Court of Cassation, which, with Order No. 21234 of July 23, 2021, stated “that only the subject who has been appointed to the processing by the ‘data controller’ can assert the quality of ‘data processing manager’.”

****that he has adhered to the instructions given to him by these in explanation of his decision-making power; it follows that where this does not occur, the "responsible party" may be recognized as the "data controller" in practice, due to the decision-making and management autonomy manifested even by disregarding the provisions of the "controller."****

Based on these considerations, G@S, operating in the manner described above, through the telephone sales channel which was closed to it, and without having followed the customer identification procedures established by Vodafone through VND in the aforementioned partnership contract, has, in the case at hand, assumed the legal status of an independent data controller.

The described facts (acquisition of the contact information of Mr. XX in the absence of an appropriate legal basis, contacting him via mobile phone for the activation of a new service, identification of the contractor with procedures foreign to the framework identified by the regulations and contracts, failure to provide a correct notice to the data subject, who had to contact the telephone company multiple

times, even going to a retail outlet, to understand what was happening), the traceability of the same to the exclusive ownership of G@S, as well as the absence of credible counterarguments from the party to the specific observations made in the initiation of the procedure, lead to confirming the responsibility of the same for the violations contested in points a) and b).

****4. CONCLUSIONS****

For the reasons stated above, the responsibility of G@S is deemed established regarding the following violations:

a) Articles 5, paragraph 1, letter a), 6 and 7 of the Regulation and Article 130 of the Code, for having carried out the above-described processing of personal data of the complainant in violation of the principles of lawfulness and fairness, failing to obtain the necessary consent from the data subject and in the absence of any other appropriate legal basis;

b) Article 5, paragraph 1, letter a), 13 and 14 of the Regulation, for having carried out the above processing in violation of the principles of transparency and fairness and without having provided the data subject with an appropriate notice, at least at the time of the first telephone contact.

Having also established the unlawfulness of the processing examined, it is necessary to:

- impose on G@S, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any further processing of the complainant's data;
- adopt an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against G@S of the administrative pecuniary sanction provided for by Article 83, paragraphs 3 and 5, of the Regulation.

****1. INJUNCTION ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION****

The violations indicated above require the adoption of an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against G@S of the administrative pecuniary sanction provided for by Article 83, paragraphs 3 and 5, of the Regulation (payment of an amount up to €20,000,000.00 or, for companies, up to 4% of the annual worldwide turnover of the previous financial year, if higher);

For the determination of the maximum amount of the pecuniary sanction, it is therefore necessary to refer to the overall turnover of G@S, as derived from the items "Received Income" and "Unique Certifications" related to the year 2023, in accordance with the previous measures adopted by the Authority, and thus this maximum amount is determined, in the case at hand, to be €20,000,000.00.

For the determination of the amount of the sanction, it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation.

In the case at hand, the following are relevant:

- 1) the severity of the violations (Article 83, paragraph 2, letter a) of the Regulation), taking into account the subject matter and purposes of the processed data, attributable to the overall phenomenon of unlawful activation of telephone services, a phenomenon that has been the subject of specific legislative provisions also aimed at preventing the realization of serious criminal violations;
- 2) as a mitigating factor, the number of subjects affected by the violations (Article 83, paragraph 2, letter a) of the Regulation) since, at present, the unlawful conduct has been reported only by Mr. XX;
- 3) as an aggravating factor, the intentional nature of the conduct of the individual enterprise (Article 83, paragraph 2, letter b) of the Regulation), aimed at diverting an online activation procedure within the scope of its activities;
- 4) as a mitigating factor, the circumstance that the Company has not previously been the recipient of a corrective and sanctioning measure by the Data Protection Authority (Article 83, paragraph 2, letter e) of the Regulation);

5) as an aggravating factor, the poor cooperation provided to the Authority (Article 83, paragraph 2, letter f) of the Regulation), taking into account the generality and lack of credibility of the responses provided regarding the specific fact reported by Mr. XX;

6) as an aggravating factor, the categories of data processed (Article 83, paragraph 2, letter g) of the Regulation), as it emerged that such data also pertained to the payment methods used by the complainant.

Based on the overall elements indicated above, and the principles of effectiveness, proportionality, and deterrence provided for by Article 83, paragraph 1, of the Regulation, and taking into account the necessary balance between the rights of the data subjects and the freedom of enterprise, also in order to limit the impact.

****Economic Impact of the Sanction on the Organizational and Functional Needs of the Individual Enterprise****

It is deemed that the administrative sanction of payment of an amount of €15,000.00 (fifteen thousand/00), equal to 0.075% of the maximum administrative sanction, should be applied to G@S.

In this case, it is also considered that the accessory sanction of publication on the website of the Authority of this injunction order should be applied, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Authority's Regulation No. 1/2019, taking into account the particular severity of the violations and the disvalue of the conduct both with reference to the evasion of public safety norms related to the identification of telephone users, and considering the fact that the unlawful treatments carried out against the whistleblower and the particular modalities of their execution lead to the conclusion that the established violations are not of an episodic nature, thus making the widest dissemination of the provision necessary.

Finally, the prerequisites of Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are present.

****ALL OF THE ABOVE CONSIDERED, THE AUTHORITY****

a) imposes on G@S, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any further processing of the whistleblower's data;

b) orders G@S, pursuant to Article 157 of the Code, to communicate to the Authority, within thirty days from the notification of this provision, the initiatives undertaken in order to implement the imposed measure; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

****ORDERS****

G@S Telecomunicazioni di Losito Lucia, represented by the legal representative pro tempore, with registered office in Scafati (SA), via Nazionale No. 448, VAT No. 09612721218, to pay the sum of €15,000.00 (fifteen thousand/00) as an administrative pecuniary sanction for the violations indicated in the reasoning, representing that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by complying with the prescribed measures and paying, within thirty days, an amount equal to half of the imposed sanction.

****ORDERS****

the aforementioned individual enterprise, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €15,000.00 (fifteen thousand/00), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981.

****DISPOSES****

a) the publication of this provision, pursuant to Articles 154-bis of the Code and 37 of Regulation No. 1/2019, as well as the application of the accessory sanction of publication on the Authority's website of

this injunction order, as provided for by Articles 166, paragraph 7 of the Code and 16 of the Authority's Regulation No. 1/2019;

b) the annotation of this provision in the internal register of the Authority - provided for by Article 57, paragraph 1, letter u), of the Regulation, as well as by Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority - relating to the violations and measures adopted in accordance with Article 58, paragraph 2, of the same Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, of Legislative Decree of September 1, 2011, No. 150, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the interested party, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, March 13, 2025

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Scorza

****THE SECRETARY GENERAL ****

Mattei